

District- Cox's Bazar

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Revision No. _____ of 2024

In the matter of:

An application under section 439 read with Section 435 of the Code of Criminal Procedure.

-And-

In the matter of:

Abul Bakkar Siddique Khokon

.... Accused-Petitioner

-Versus-

The State and others

.... Opposite Parties

Mr. Mohammad Rezaul Karim, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 5th February 2024

By this application under Section 439 read with Section 435 of the Code of Criminal Procedure accused petitioner Abu Bakkar Siddique Khokon has challenged the legality and

propriety of Order No.20 dated 16.08.2022 passed by the learned Joint Session Judge, 2nd Court, Cox's Bazar in Session Trial Case No.1020 of 2020 arising out of C.R. Case No.53 of 2020 rejecting the application for recall of PW1 Sajjadul Islam for cross examination.

Mr. Mohammad Rezaul Karim, learned Advocate for the petitioner submits that the appointed Advocate of the accused petitioner could not put all the relevant and necessary questions to PW1 Sajjadul Islam at the time of cross examination. As such the accused petitioner submitted a petition for recall of above PW1 for cross examination. But the learned Joint Session Judge has most illegally rejected the petition and the same was erroneously upheld by the learned Session Judge.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the petitioner submits that in order to avoid further delay in the conclusion of trial of above case only one prosecution cases may be recalled for cross examination.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

The petitioner is the sole accused of Session Case No.1020 of 2020 under Section 138 of the Negotiable Instrument Act, 1881 and he sought recall of only one PW for cross examination.

On consideration of above facts of the case and to avoid further delay in the conclusion of the trial of the case we are of the view that the ends of the justice will be met if the impugned order of the learned Joint Session Judge is set aside and the learned Joint Session Judge is directed to recall PW1 Sajjadul Islam for cross examination without granting any adjournment at the instance of the accused.

In the result, the impugned order dated 16.08.2022 is set aside. We are directing the learned Joint Session Judge, 2nd Court, Cox's Bazar to recall PW1 Sajjadul Islam for cross examination by the accused within 15(fifteen) days from the date of receipt of this order and then proceed with the conclusion of trial in accordance with law.

With above direction this application under Section 439 read with Section 435 of the Code of Criminal Procedure is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER